Montgomery County District Court

Cause No. 2025-CV-0009

Todd Lee, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	9-12-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waivnig the foregoing general denial, Defendant asserts the following affirmative defenses.

First, Plaintiff's alleged injuries and damages were not proximately caused by any negligent act or omission of Defendant. The collision at issue was caused, in whole or in part, by the acts or omissions of Plaintiff, including following too closely and failing to keep a proper lookout.

Second, Plaintiff failed to mitigate damages by unreasonably delaying or declining recommended medical treatment, and any recovery must be reduced accordingly.

Third, under Chapter 33 of the Texas Civil Practice and Remedies Code, Defendant requests that the trier of fact determine the percentage of responsibility attributable to Plaintiff and any other responsible third party, and that any recovery be reduced or barred in accordance with the proportionate responsibility statute.

Defendant reserves the right to amend this Answer as discovery proceeds.